

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): TELEPHONE NO.: FAX NO. (Optional): E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name):	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	CASE NUMBER:
PLAINTIFF: DEFENDANT:	
☐ ☐ OFFER TO COMPROMISE AND ☐ ☐ ACCEPTANCE UNDER CODE OF CIVIL PROCEDURE SECTION 998	
Note: This form is designed to be used only in civil actions involving a single plaintiff and a single defendant, where the offer and acceptance involves a money judgment. The court will file this offer to compromise and the acceptance only if accompanied by a judgment prepared for the court's signature and entry of judgment.	

OFFER TO COMPROMISE

1. Plaintiff (name): _____ offers to have judgment entered under Code of Civil Procedure section 998 in favor of the plaintiff and against (name of the defendant): _____

2. The judgment is to be (check and complete a or b)
 - a. ☐ ☐ in the amount of \$
 - (1) ☐ ☐ Each party shall bear its own costs and fees.
 - (2) ☐ ☐ Including costs under Code of Civil Procedure section 1032 and attorney's fees.
 - (3) ☐ ☐ Plus costs under Code of Civil Procedure section 1032.
 - (4) ☐ ☐ Plus costs under Code of Civil Procedure section 1032 and attorney's fees in the amount of \$ _____.
 - (5) ☐ ☐ Plus costs under Code of Civil Procedure section 1032 and attorney's fees allowed by law as determined by the court.
 - b. ☐ ☐ as follows (describe the terms and conditions of the judgment):

☐ ☐ Continued in attachment 2b.

Date:

 (NAME OF PARTY OR ATTORNEY FOR PARTY MAKING OFFER)

 (SIGNATURE OF PARTY OR ATTORNEY FOR PARTY MAKING OFFER)

ACCEPTANCE OF OFFER

3. Defendant (name): _____ hereby accepts the offer for the judgment stated in items 1 and 2 above.

Date:

 (NAME OF PARTY OR ATTORNEY FOR PARTY ACCEPTING OFFER)

 (SIGNATURE OF PARTY OR ATTORNEY FOR PARTY ACCEPTING OFFER)